

Assam Weights and Measures (Enforcement) Act, 1958

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State of Assam - Act

Assam Weights and Measures (Enforcement) Act, 1958

ASSAM

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Assam Weights and Measures (Enforcement) Act, 1958

Act 19 of 1959

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Assam Weights and Measures (Enforcement) Act, 1958

(Assam Act No. 19 of 1959)

Last Updated 11th February, 2021

[Dated 24.5.1959.]

An Act to provide for the enforcement of Standards of Weights and Measures Act, 1956 (Central Act 89 of 1956) and for matters connected therewith.

Preamble. - Where as it is expedient to enforce the Standards of Weights and Measures Act, 1956 (Central Act 89 of 1956) in the State of Assam and for matters connected therewith ;

It is hereby enacted in the Ninth Year of the Republic of India as follows:-

Chapter - I Preliminary

1.

Short title, extent and commencement.

(1)

This Act may be called the Assam Weights and Measures (Enforcement) Act, 1958.

(2)

It extends to the whole of Assam.

(3)

It shall come into force on such date as the State Government may, by notification in the Official Gazette, appoint ; and different dates may be appointed for different provisions of this Act or for different areas or for different classes of undertakings or for different classes of goods.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"Commercial weight or measure" means a weight or measure purporting to be a standard weight or measure used in any transaction for trade or commerce ;

(b)

"Controller" means the Controller of Weights and Measures appointed under section 15 ;

(c)

"Inspector" means an Inspector of Weights and Measures appointed under section 15 ;

(d)

"Mint" means the mint of the Central Government either in Bombay or in Calcutta ;

(e)

"Prescribed" means prescribed by rules made under this Act ;

(f)

"Standard weight or measure" means any unit of mass or measure referred to in sub-section (1) of section 13 of the Standards of Weights and Measures Act, 1956 (Central Act 89 of 1956) and includes any other weight or measure permitted to be used by the Central Government in pursuance of sub-section (1) of section 14 of the said Act ;

(g)

"Reference standards" means the sets of standard weights and measures supplied to the State Government by the Central Government in pursuance of sub-section (2) of section 15 of the Standards of Weights and Measures Act, 1956 (Central Act 89 of 1956);

(h)

"Stamping" means marking in such manner as to be so far as practicable, indelible and includes casting, engraving, etching and branding;

(i)

"Verification" with its grammatical variations used with reference to a weight or measure or weighing or measuring instrument, includes the process of comparing, checking or testing such weight or measure or weighing or measuring instrument and also includes re-verification ;

(j)

"Weighing instrument" means any instrument for weighing and includes scales with the weights belonging thereto, scale-beams, balances, spring balances, steel yards and other weighing machines ;

(k)

"Measuring instrument" means any measuring instrument other than a weighing instrument and includes any instrument for measuring length, area, volume or capacity.

(l)

['Sealed package or container' means a closed package, bottle, casket, tin, barrel, case, receptacle, bag, sack, wrapper or other thing in which any article is placed or packed and which is intended to be sold with its contents, without any weighment or measurement of such contents at the time of sale ;

[Inserted by Assam Act 27 of 1964, Dated 21.12.1964.]

(m)

'Use in transaction for trade or commerce' means use for the purpose of determining or declaring the quantity of any

thing in terms of measurement of length, area, volume, capacity or weight in or in connection with:-

- (a)
any contract, whether by way of sale, purchase, exchange or otherwise ; or
- (b)
any assessment of royalty, toll, duty or other dues ; or
- (c)
the assessment of any work done or services rendered, otherwise than in relation to research or scientific studies or in individual house-holds for house-hold purposes.]

Chapter II

Standard Weights and Measures

3.

Working Standards.

(1)

For the purpose of verifying the correctness of commercial weights and measures and weighing and measuring instruments used in transactions for trade or commerce, the State Government may cause to be prepared as many sets of authenticated standard weights and measures as it may deem necessary to be called the working standards [***]
[Deleted 'and special sets of working standards in relation to bullion including precious stones' by Assam Act 27 of 1964, Dated 21.12.1964.]

.

(2)

The working standards shall be made of such material and according to such designs and specifications and shall be prepared by such agency and shall be stamped and authenticated by such person or authority and in such manner as may be prescribed.

(3)

The working standards shall be kept at such places, in such custody and in such manner as may be prescribed.

(4)

A working standard shall be verified with the secondary standard and marked by such persons, at such places, at such intervals and in such manner as may be prescribed:

[***]

[Deleted 'proviso' by Assam Act 27 of 1964, Dated 21.12.1964.]

(5)

A working standard which is not so verified and marked within the prescribed period shall not be deemed legal or be used for the purposes of this Act.

(6)

A working standard which has become defective shall no longer be legal or be used for the purposes of this Act, until it has been verified and marked in the prescribed manner.

4.

Secondary standards.

(1)

For the purpose of verifying the correctness of the working standards, the State Government may cause to be prepared at the Mint as many sets of authenticated standard weights and measures as it may deem necessary to be called the secondary standards.

(2)

The secondary standards shall be made of such material and according to such design and specifications as may be prescribed and shall be stamped and authenticated by such person or authority as the Central Government may direct.

(3)

The secondary standards shall be kept at such places, in such custody and in such manner as may be prescribed.

(4)

A secondary standard shall be verified with the reference standard at least once in every period of five years and shall be marked with the date of verification in the prescribed manner by such person or authority as the State Government may direct.

(5)

A secondary standard which is not so verified and marked within the aforesaid period shall not be deemed legal and shall not be used for the purposes of this Act.

5.

Reference standards.

- The reference standards shall be kept at such places, in such custody and in such manner as the State Government may direct.

6.

Standard weighing and measuring instruments.

(1)

For the purpose of verifying the correctness of commercial weights and measures and of weighing and measuring instruments used in transactions for trade or commerce, the State Government may cause to be prepared as many sets of weighing and measuring instruments as it may deem necessary.

(2)

Such instruments shall be of such kind, kept in such number and shall be verified and stamped in such manner as may be prescribed.

(3)

Such instruments shall be kept at all places where secondary standard or working standards are kept.

7.

Prohibition of use of weights and measures other than standard weights and measures.

- [(1) Notwithstanding anything contained in any other law or any custom, usage or practice, no unit of mass or measure other than the standard weights or measures shall be used in any transactions for trade or commerce in any area or class of goods or undertakings in respect of which this Act has come into force or be kept in any premises where such transactions are usually conducted.]

[Substituted by Assam Act 27 of 1964, Dated 21.12.1964.]

(2)

Any custom, usage, practice or method of whatever nature which permits in any trade, a trader, seller or buyer to demand, receive or cause to be demanded or received any quantity of article in excess of, or less than, the quantity fixed by the weight or measure by which the contract or dealing in respect of the said article has been made, shall be void.

(3)

Any transaction, dealing or contract made or had after the expiry of six months from the commencement of this Act shall, in so far as it contravenes the provisions of sub-section (1), be void.

8.

Power to prescribe the use of weights only, or measures only, in certain cases.

(1)

Notwithstanding anything contained in this Act, the State Government may, by notification in the Official Gazette, direct that in any specified trade or class of trades no transaction, dealing or contract shall be made or had except by weight only, or except by measure only.

(2)

A notification issued under this section shall take effect in such area, with effect from such date, and subject to such conditions, if any, as may be specified therein.

Chapter III

Verification and Stamping of Weights and Measures

9.

Marking of denominations on commercial weights and measures.

- Every weight or measure manufactured for use as a commercial weight, or measure shall bear the description of the weight or measure which it purports to be marked legibly on it in such manner as may be prescribed.

10.

Prohibition of sale of unstamped commercial weights and measures.

- No commercial weight or measure or weighing or measuring instrument shall be sold or delivered unless it has been

verified or re-verified in accordance with the rules made under this Act and stamped in the prescribed manner by an Inspector with stamp of verification.

11.

Prohibition of use of unstamped commercial weights or measures.

- No weight or measure or weighing or measuring instrument shall be used in transaction in trade or commerce unless it has been verified or re-verified in accordance with the rules made under this Act and stamped in the prescribed manner by an Inspector, with a stamp of verification.

12.

[Power of State Government to exempt.

[Substituted by Assam Act No. 18 of 1960, dated 24.5.1960.]

- The State Government may, by notification and subject to such conditions and restrictions as it may think fit to impose, exempt any class of persons, any commodity, trade, any class of trades or weights or measures or weighing or measuring instruments used or intended to be used for any purpose other than the trade specified in the notification from all or any of the provisions of this Act.]

13.

Prohibition of manufactures, etc., of weights and measures without license.

- No person shall, in course of trade, manufacture, repair or sell any commercial weight or measure or any weighing or measuring instrument, unless he has obtained in the prescribed manner a license in this behalf from the State Government or any officer authorised by such Government.

14.

[Marking of weight or measure on sealed containers.

[Substituted by Assam Act 27 of 1964, Dated 21.12.1964.]

- No person shall, offer for sale, expose for sale, or have in his possession for sale, any article contained in a sealed package or container unless such package or container bears thereon, or on a label securely attached thereto, a description of the net weight or measure of the article contained therein:

Provided that the provisions of this section shall not apply to-

(i)

any sealed package or container-

(a)

of net weight of less than one hundred and twenty grammes, if the sealed package or container contains biscuits, confectionery or sweets ; and

(b)

of net weight of less than sixty grammes, if the sealed package or container contains any other foodstuff ;

(ii)

any other article sold, offered for sale, exposed for sale, or in possession for sale which is not ordinarily sold in transactions for trade or commerce by weight or measure:

Provided further that the State Government may, if it is satisfied that the size of any class of such packages or containers renders it impracticable to comply with the provisions of this section by notification in the official Gazette, exempt such class from the operation of this section.]

14A.

[Prohibition of quoting price, or expressing quantity of any article otherwise than in terms of standard weight or measure.

[Inserted by Assam Act 27 of 1964, Dated 21.12.1964.]

- No person shall, in any transaction for trade or commerce, quote the price, or express the quality, of any article otherwise than in terms of the standard weight or measure.]

15.

Appointment of Controller, Assistant Controllers and Inspectors.

(1)

The State Government may appoint a Controller of Weights and Measures for the State and as many Assistant Controllers and Inspectors of Weights and Measures as may be necessary for exercising the powers and discharging the duties conferred or imposed on them by or under this Act.

(2)

The State Government may, by general or special order, define the local limits within which each Assistant Controller and Inspector shall exercise the powers and discharge the duties conferred or imposed on them by or under this Act.

(3)

Subject to the provisions of this Act, all Assistant Controllers of Weights and Measures and Inspectors shall perform their functions under the general superintendence and control of the Controller, and Controller and the Assistant Controllers of Weights and Measures may, in addition to the powers and duties conferred or imposed on them by or under this Act, exercise any power or discharge any duty so conferred or imposed on Inspectors.

16.

Verification and stamping by Inspectors.

(1)

Every Inspector shall, for the purpose of verification of weights and measures and weighing and measuring instruments, attend at such place and time within his jurisdiction as may be appointed in this behalf by the Controller.

(2)

The Inspector shall verify every weight, or measure or weighing or measuring instrument which is brought to him for the purpose of verification and if he finds such weight or measure or weighing or measuring instrument correct and in conformity with the Standards of Weights and Measures Act, 1956. (Central Act 89 of 1956), and the rules made thereunder, he shall stamp the same with a stamp of verification in the prescribed manner.

17.

Power to inspect, etc.

(1)

An Inspector may, within the area under his jurisdiction, inspect at all reasonable times, the weights, measures and weighing and measuring instrument which are used in transaction for trade or commerce or are in the possession of any person or are on any premises for such use and may verify every such weight or measure or weighing or measuring instrument with a secondary or working standard or weighing or measuring instrument prescribed for the purpose.

(2)

For the purpose of verifying the correctness of any weight or measure used in any transaction, an Inspector may also verify the weight or measure of any article sold or delivered in the course of the transaction.

(3)

An Inspector acting under sub-section (1) may, at all reasonable times, require any trader or any employee or agent of a trader to produce before him for inspection all weights, measures, weighing and measuring instruments which are used by him or are in his possession or are kept on any premises used for trade and ad documents and records relating thereto and such trader, employee or agent shall comply with such requirements.

(4)

An Inspector may seize and detain any weight or measure or weighing or measuring instrument regarding which an offence under this Act appears to have been committed or which appears to have been or which might be used in the commission of such an offence, and may also seize and detain any article sold or delivered or caused to be sold or delivered by means of such weight or measure or weighing or measuring instrument together with any documents or records relating thereto.

(5)

[Where an Inspector has reason to believe that a sealed package or container of an article does not actually contain the net weight or measure of the article which it purports to contain, the Inspector may break open the sealed package or container and verify its contents, and

(i)

if, on such verification, the net weight or measure of the article is found to be correct, the Inspector shall tender the fair price thereof and may require a written acknowledgment therefor ;

(ii)

if, on the other hand, the net weight or measure of the article is found on such verification to be incorrect, the Inspector may seize the package or container and the article contained therein, after tendering the fair price thereof where the seizure is made from any person other than the manufacturer, and may file a complaint against the manufacturer for contravention of the provisions of section 14.]

(6)

For the purpose of such inspection, an Inspector may, at all reasonable times, enter into any place where weights, measures or weighing or measuring instrument are used or kept for use in transaction for trade or commerce and inspect such weights and measures and weighing and measuring instruments.

18.

Power of Inspector to adjust weights or measures.

- Where it appears to the State Government desirable that an Inspector should be allowed in any area to adjust the weights or measures or weighing or measuring instruments, it may, if it thinks fit authorise such Inspector to adjust weights and measures or such instruments accordingly.

19.

Manufacturers, etc., to maintain records and documents.

(1)

Every manufacturer, repairer or dealer in weights and measures or weighing or measuring instrument, and every person using them in transaction for trade or commerce shall maintain such records and accounts as may be prescribed and if required so to do by an Inspector, shall produce such records and accounts before him.

(2)

Notwithstanding anything contained in sub-section (1), if the State Government is of opinion that having regard to the nature of business carried on by any person referred to in sub-section (1), it is necessary so to do, it may, by order, exempt such person or class of persons from the operation of that sub-section.

20.

Appeals.

(1)

Subject to the provisions of sub-section (2), an appeal shall lie -

(a)

from every decision of an Inspector under this Act, to the Assistant Controller, and from every decision of the Assistant Controller to the Controller;

(b)

from every decision of the Controller under this Act, not being a decision made in appeal under clause (a), to the State Government or any authority specially authorised in this behalf by the State Government.

(2)

Every such appeal shall be preferred within thirty days from the date of service of the decision on the person concerned.

(3)

Every appeal to the Assistant Controller shall be affixed by a Court fee stamp of rupees four and every appeal to the Controller or to the State Government or to any authority specially authorised by the State Government under clause (b) of sub-section (1) shall be affixed by a Court fee stamp of rupees ten.

(4)

On receipt of any such appeal, the appellate authority shall, after giving the appellant a reasonable opportunity of being heard and after making such enquiry as it deems proper decide the appeal,

21.

[Levy of fees.

[Substituted by Assam Act 27 of 1964, Dated 21.12.1964.]

- The State Government may charge such fees for the grant of licences under section 13, for manufacture, repair or sale of weights and measures and weighing and measuring instruments and also for the verification, marking, stamping and adjustment of weights and measures and weighing and measuring instruments as may be prescribed.]

[Substituted by Assam Act 27 of 1964, Dated 21.12.1964.]

22.

Validity of weights and measures duly stamped.

- A weight or measure or weighing or measuring instrument, duly stamped by an Inspector under this Act, shall be a legal weight or measure or weighing or measuring instrument in all places in which this Act has come into force unless it is found to be false or defective, and shall not be liable to be re-stamped by reason merely of the fact that it is used in any place other than that in which it was originally stamped.

Chapter IV

Penalties

23.

Penalty for sale or delivery by weight or measure other than standard weight or measure.

- Whoever, after the expiry of six months from the commencement of this section, sells or causes to be sold or delivers or causes to be delivered in the course of any transaction for trade or commerce any article by any denomination of weight or measure other than one of the standard weights or measures [or whoever after the commencement of the Assam Weights and Measures (Enforcement) (Amendment) Act, 1964 keeps any unit or mass or measure other than the standard weights or measures in any premises where such transactions are usually conducted]

[Inserted by Assam Act 27 of 1964, Dated 21.12.1964.]

shall be punishable, for a first offence, with fine which may extend to one thousand rupees, and for a second or subsequent offence, with imprisonment for a period which may extend to three months, or with fine, or with both.

24.

Penalty for sale of unstamped commercial weights and measures.

- Whoever sells or delivers any commercial weight or measure or any weighing or measuring instrument which has not been verified or re-verified or stamped in accordance with the provisions of this Act and the rules made thereunder shall be punishable with fine which may extend to one thousand rupees.

25.

Penalty for use of unstamped commercial weights and measures.

- Whoever uses in any transaction for trade or commerce, or has in his possession for such use, any commercial weight or measure or any weighing or measuring instrument which has not been verified or re-verified or stamped in accordance with the provisions of this Act and the rules made thereunder shall be punishable for a first offence, with fine which may extend to one thousand rupees, and for a second or subsequent offence, with imprisonment for a period which may extend to three months, or with fine, or with both.

Explanation 1. - When any such weight or measure or weighing or measuring instrument is found in the possession of any trader or any employee or agent of such trader, such trader, employee or agent shall be presumed, until the contrary is proved, to have had it in his possession for use in transactions for trade or commerce.

Explanation 2. - Where any weight or measure or weighing or measuring instrument is used or possessed in contravention of this section by any employee or agent of a trader on behalf of such a trader, such trader shall, unless he proves that the offence under this section was committed by his employee or agent without his knowledge or consent, be also deemed to be guilty of the offence.

26.

Penalty for manufacture of weights, etc., without license.

- If any person manufactures, repairs, or sells any commercial weight or measure or weighing or measuring instrument, without obtaining a license as required by section 13, shall be punishable with imprisonment for a period which may extend to three months, or with fine, or with both.

27.

Penalty for use of weight or measure in contravention of section 8.

- Whoever contravenes any of the provisions of a notification issued under section 8 shall be punishable with fine which may extend to one thousand rupees.

28.

Penalty for failure to mark weight or measure on sealed containers.

- Whoever contravenes the provisions of section 14 shall be punishable with fine which may extend to one thousand rupees.

28A.

[Penalty for quoting prices or expressing quantities otherwise than in terms of standard weight or measure.

[Inserted by Assam Act 27 of 1964, Dated 21.12.1964.]

- Whoever contravenes the provisions of section 14A shall be punishable with fine which may extend to one thousand rupees.]

29.

Penalty for fraudulent use of weights, measures, etc.

- Whoever fraudulently uses any standard weight or measure or weighing or measuring instrument which he knows to be false shall be punishable with imprisonment for a period which may extend to one year, or with fine, or with both.

30.

Penalty for being in possession of false weight or measure, etc.

- Whoever is in possession of any commercial weight or measure or weighing or measuring instrument which he knows to be false, intending that the same may be fraudulently used, shall be punishable with imprisonment for a period which may extend to one year, or with fine, or with both.

31.

Penalty for making or selling false weight or measure, etc.

- Whoever makes, sells or disposes of, or causes to be made, sold or disposed of any standard weight or measure or weighing or measuring instrument which he knows to be false, in order that the same may be used as true, or knowing that the same is likely, to be used as true, shall be punishable with imprisonment for a period which may extend to one year, or with fine, or with both.

32.

[Penalty for delivering or receiving any quantity of article less than, or in excess of the quantity fixed by the weight or measure in the contract.

[Substituted by Assam Act 27 of 1964, Dated 21.12.1964.]

- Whoever-

(i)

in selling any article by weight or measure delivers or causes to be delivered to the purchaser any quantity of that article less than, or

(ii)

in buying any article by weight or measure demands or receives or causes to be demanded or received from the vendor any quantity of that article in excess of, the quantity fixed by the weight or measure by which the contract or dealing in respect of that article has been made, shall be punishable with fine which may extend to five hundred rupees.]

33.

Penalty for forging, etc., of weights, measures, etc.

(1)

Whoever forges or counterfeits any stamp used under this Act for the stamping of any standard weight or measure or weighing or measuring instrument or possesses any such counterfeit stamp, or removes a stamp from any standard weight or measure or weighing or measuring instrument and inserts the same into another weight or measure or weighing or measuring instrument or wilfully increases or diminishes a weight or measure so stamped, shall be punishable with imprisonment for a period which may extend to one year, or with fine, or with both.

(2)

Whoever knowingly uses, sells, disposes of or exposes for sale any weight or measure or weighing or measuring instrument with such forged or counterfeit stamp thereon, or a weight or a measure so increased or diminished shall be punishable with imprisonment for a period which may extend to six months or with fine, or with both.

34.

Penalty for neglect or refusal to produce weight or measure, etc ., for inspection.

- Whoever

(a)

refuses or neglects to produce for inspection under section 17, any weight or measure or weighing or measuring instrument or any document or record relating thereto in his possession or on his premises, or

(b)

refuses to permit an Inspector to inspect and verify any such weight, measure, instrument, document or record, or

(c)

obstructs the entry of an Inspector under section 17, or

(d)

otherwise obstructs or hinders an Inspector in the performance of his duties under this Act, shall be punishable with fine which may extend to five hundred rupees.

35.

Penalty for breach of duty by Inspector.

- If an Inspector knowingly stamps a weight or measure or weighing or measuring instrument in contravention of the provisions of this Act or of the rules made thereunder, he shall be punishable with imprisonment for a period which may extend to one year, or with fine, or with both.

Chapter V

Miscellaneous

36.

Protection of action taken in good faith.

- No suit, prosecution or other legal proceeding shall lie against the Controller, or any Assistant Controller of Weights and Measures or any Inspector or any other person or authority appointed under this Act in respect of anything which is in good faith done or intended to be done in pursuance of this Act or Rules made thereunder,

37.

Controller, etc., appointed under the Act to be public servants.

- The Controller, Assistant Controller and Inspector appointed under this Act shall be deemed to be a public servant within the meaning of section 21 of the Indian Penal Code, 1860 (Act XLV of 1860).

38.

Cognizance of offences, etc.

(1)

No court shall take cognizance of an offence punishable under this Act except upon complaint in writing made by the Controller or [any officer]

[Substituted 'an Assistant Controller' by Assam Act 27 of 1964, dated 21.12.1964.]

authorised in this behalf by the Controller by general or special order.

(2)

No court inferior to that of a Magistrate of the first class shall try any offence punishable under this Act.

39.

Stamped weights, etc., to be presumed, to be correct.

- A weight or measure or weighing or measuring instrument duly stamped under the provisions of this Act and the rules made thereunder shall be presumed to be correct until its inaccuracy is proved, if this is produced in any court by any Inspector having charge thereof or by any person acting under the general or special authority of the Controller.

40.

Offences by companies.

(1)

If the person committing an offence under this Act is a company, every person who, at the time the offence was committed, was in-charge of, and was responsible to the company for the conduct of the business of the company, as well as the company shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly :

Provided that nothing contained in this sub-section shall render any such person liable -to punishment if he proves that the offence was committed without his knowledge or that he exercised all due diligence to prevent the commission of such offence.

(2)

Notwithstanding anything contained in sub-section (1), where an offence under this Act has been committed by a company and it is proved that the offence has been committed with the consent or connivance of, or is attributable to any neglect on the part of, any director, manager, secretary or other officer of the company shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation. - For the purpose of this section:-

(a)

"Company" means any body corporate and includes a firm or other association of individuals ; and

(b)

"director" in relation to a firm, includes a partner in the firm,

40A.

[Composition.

[Inserted by Assam Act 27 of 1964, dated 21.12.1964.]

(1)

Any offence punishable under sections 24, 27, 28, 28A, 32 or 34 and other than a second or subsequent offence under section 23 or 25 may, either before or after the institution of the prosecution, be compounded by the State Government on payment of such sum as the State Government thinks fit.

(2)

On payment by the offender of the compounding money as per sub-section (1), the offender/ if in custody, shall be set at liberty and if any proceedings in any criminal court have been instituted against the offender in respect of the offence, the composition shall be deemed to amount to an acquittal and no further criminal proceedings shall be taken against him in respect of such offence.]

41.

Delegation of powers.

(1)

The State Government may by notification in the Official Gazette, direct that any power exercisable by it under this Act or rules made thereunder shall, in relation to such matters and subject to such conditions, as may be specified in the notification be exercisable also by such officer or authority subordinate to the State Government as may be specified in the notification.

(2)

All notifications under sub-section (1) shall be laid, as soon as may be, before the State Legislature.

42.

Limits of error to be tolerated in weights and measures.

- Subject to any rules that may be made under the Standards of Weights and Measures Act, 1956 (Central Act 89 of 1956) in this behalf, the State Government may prescribe the limits of error which may be tolerated :-

(a)

in secondary standards referred to in section 4 ;

(b)

in working standards referred to in section 3 ;

(c)

in commercial weights and measures or in selling articles by weight or measure generally or as regards any trade or class of trades ; and

(d)

weighing and measuring instruments.

43.

Repeal.

- The Assam Adoption of Standard Weights Act, 1955 (Assam Act IX of 1956), is hereby repealed.

43A.

[Exemption.

[Inserted by Assam Act 27 of 1964, dated 21.12.1964.]

- Nothing in this Act shall apply to weights or measures or weighing of measuring instruments used by or in any unit or establishment of the Armed Forces of the Union.]

44.

Power to make rules.

(1)

The State Government may, by notification in the Official Gazette, make rules to carry out the purpose of this Act

(2)

In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely

(a)

the material of which and the designs and specifications according to which working standards may be made, the agency by which such standards may be prepared, the person by whom or the authority by which and the manner in which such standards may be stamped and authenticated ; the places at which and the custody and manner in which

such standards may be kept ;

(b)

the procedure for the verification or re-verification and marking of working standards, the person by whom, the places at which and the intervals at which, they may be marked ;

(c)

the material of which and the designs and specifications according to which secondary standards may be made, the places at which and the custody and manner in which such standards may be kept ;

(d)

the procedure for the verification or re-verification and marking of secondary standards and the manner in which they may be marked ;

(e)

the number of weighing and measuring instruments to be kept, the manner in which they may be verified and stamped and necessary particulars regarding the same ;

(f)

the manner in which commercial weights and measures may be marked by manufacturers ;

(g)

the form and manner in which, and the conditions subject to which licenses may be granted to persons for manufacture, repair or sale of commercial weights and measures and weighing and measuring instruments ;

(h)

the qualifications, functions and duties generally of Assistant Controllers and Inspectors under this Act ;

(i)

verification and stamping of weights and measures and weighing and measuring instruments and the period within which they are to be re-verified ;

(j)

inspection of weights and measures and weighing and measuring instruments used in transactions for trade or commerce ;

(k)

the seizure, detention and disposal of weights and measures which are not authorised by this Act

(l)

the books, accounts and records relating to weights and measures and weighing and measuring instruments to be maintained and the manner in which they may be maintained or produced ;

(m)

the limits of error which may be tolerated in secondary or working standards ;

(n)

the limits of error which may be tolerated in weights and measures and weighing and measuring instruments used or intended to be used in transaction for trade or commerce ;

(o)

the limits of error which may be tolerated in selling articles by weights and measures generally or as regards any trade or class of trades ;

(p)

the form and manner in which appeals may be preferred and the procedure for hearing appeals ;

(q)

the fees which may be charged under sections 13 and 21 and the collection and levy of the same ;

(r)

any other matter which has to be, or may be, prescribed ;

(s)

the material, form and specification and manufacture and sale of commercial weights and measures and weighing and measuring instruments.

(3)

In making any rule under this section the State Government may provide that a breach thereof shall be punishable with fine which may extend to five hundred rupees.

(4)

All rules made under this Act shall be laid for not less than fourteen days before the State Legislature as soon as possible after they are made, and shall be subject to such modifications as the Legislature may make during the session in which they are so laid or the session immediately following.

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